

Reserved On : 07.11.2025 vs State Of Himachal Pradesh & Anr on 17 November, 2025

Author: Virender Singh

Bench: Virender Singh

2025:HHC:38506

IN THE HIGH COURT OF HIMACHAL PRADESH, SHIMLA.

Cr. MP(M) No. 2533 of 2025

Reserved on : 07.11.2025

Decided on : 17.11.2025

Amit Kumar

...Applicant

Versus

State of Himachal Pradesh & Anr.

...Respondents

Coram

The Hon'ble Mr. Justice Virender Singh, Judge.

Whether approved for reporting?

For the applicant : Mr. Mohar Singh, Advocate.

For the respondents : Mr. H.S. Rawat, Additional Advocate General, with Ms. Ranjna Patial and Ms. Avni Kochhar Mehta, Deputy Advocates General, for respondent No. 1-State.

Mr. Janak Raj, Advocate, for respondent No. 2.

Virender Singh, Judge

Applicant ☐ Amit Kumar has filed the present application under Section 483 of the Bharatiya Nagarik 2025:HHC:38506 Suraksha Sanhita, 2023 (hereinafter referred to as 'BNSS'), for releasing him, on bail, during the pendency of the trial, arising out of FIR No. 08/2025, dated 28.01.2025,

registered under Sections 108, 85 of Bharatiya Nyaya Sanhita, 2023 (hereinafter referred to as the BNS), Section 9 of Prohibition of Child Marriage Act and Section 6 of Protection of Children from Sexual Offences Act (hereinafter referred to as the POCSO Act), with Police Station Jhakri, District Shimla, H.P.

2. According to the applicant, he is innocent person and has falsely been implicated, in this case, at the instance of the complainant.

3. It is the further case of the applicant that even during the investigation, no legal evidence could be collected by the police to connect the accused with the crime in question. According to the applicant, the investigation, in the present case, is complete and charge sheet has been presented in the competent Court of law and case is now fixed for PWs.

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4. The applicant has earlier tried his luck by moving the similar application before the Court of learned Additional Sessions Judge, Fast Track Special Court Kinnaur at Rampur Bushahr, District Shimla, H.P., which was dismissed vide order dated 25.03.2025.

5. Apart from this, the applicant has given certain undertakings, for which, he is ready to abide by, in case, ordered to be released on bail, during the pendency of the trial.

6. On the basis of above facts, Mr. Mohar Singh, Advocate, appearing for the applicant, has prayed that the bail application may be allowed.

7. When, put to notice, respondent No. 1 has filed status report, whereas, respondent No. 2 has filed objections to the bail application.

8. In the status report, filed by respondent No. 1 State, it has been mentioned that on 28.01.2025, complainant moved a complaint to the police, disclosing therein, that he is resident of the address as mentioned in the application and according to him, his daughter was 4 2025:HHC:38506 married to Amit Kumar son of Sh. Surinder Kumar (applicant), six years ago, from the date of making the complaint, on 28.01.2025.

8.1 It is his further case that on 27.01.2025, during the night time, the police informed him that his daughter had committed suicide by hanging. According to him, Amit Kumar has abetted his daughter to commit suicide, as he used to beat her. The deceased (child victim) also made a complaint to Police Station Jeori, regarding the beatings. Due to sudden death of child victim, he has alleged that her husband had abetted her to take such strong step and he also used to beat her.

8.2 On the basis of above facts, police registered the case FIR No. 08/2025, dated 28.01.2025, under Section 108 BNS and criminal machinery swung into motion. Thereafter, on the intervening night of 27/28.01.2025, the dead body, which was found hanging with the ceiling fan, was removed down and photographs were clicked. The cloth (Chunni/Duppatta) used to commit suicide, was also taken

into possession.

5 2025:HHC:38506 8.3 The dead body was, thereafter, sent to MGMSC Khaneri, for postmortem. After postmortem, the dead body was handed over to family members of the deceased, for her last rites. Statements of witnesses were recorded under Section 180 of BNSS. Thereafter, the spot was visited at the instance of complainant and landlord of the room, where dead body was found. Accused was arrested and thereafter, he was produced before the learned CJM Kinnaur, on 29.01.2025, from where, he was remanded to police custody for three days. Age of the deceased, at the time of death, was found to be 23 years and her marriage was solemnized in the year 2019, as such, in order to ascertain, whether, at the time of marriage, she was minor or not, correspondence was made with Gram Panchayat Gopalpur, from where, the age certificate and marriage registration certificate were obtained. As per the marriage registration certificate, marriage between deceased and Amit Kumar (applicant) was solemnized on 07.10.2019.

8.4 As per the birth certificate, date of birth, of the deceased was found to be 05.08.2002, and at the time of 6 2025:HHC:38506 marriage, on 07.10.2019, her age was found to be 17 years, two months and two days, as such, Section 85 of BNS, Section 9 of The Prohibition of Child Marriage Act and Section 6 of POCSO Act, were added, in this case. 8.5 During investigation, from the statement of complainant and family members of the deceased, it was found that accused Amit Kumar (applicant) used to beat his wife Manisha and also harassed her. In this regard, matter was found to be pending before Police Post Jeori, as well as, CDPO Rampur.

8.6 On 05.03.2025, the Domestic Incident Report (DIR) was obtained, as well as, report No. 16 dated 29.07.2024, from Police Post Jeori, was obtained. The copy of parivar register was obtained. As per the said documents, the date of birth of the son of the applicant and child victim, namely Garvit, was found to be 03.08.2020. 8.7 As per the status report, the charge sheet has been filed, in this case, and case is now listed for PWs. 8.8 On the basis of the above facts, a prayer has been made on behalf of respondent No. 1 State to dismiss 7 2025:HHC:38506 the bail application.

9. In this case, complainant has also filed the objection, highlighting the seriousness of the offence and it has also been pleaded that the applicant had tortured the victim physically, as well as, mentally, as depicted in report No. 16, dated 29.07.2024. It has been apprehended that in case, the applicant is released on bail, he may tamper with the evidence and also cause harassment to the complainant and his family members.

10. Reiterating the above facts, Sh. Janak Raj, Advocate, appearing for respondent No. 2 complainant has prayed that bail application may kindly be dismissed.

11. Investigation, in the present case, is complete and case is now listed for PWs. The accused applicant is in judicial custody since 28.01.2025.

12. Apart from the present case, no other case has been found to be registered against the applicant. As such, it can be said that the accused (applicant) is presumed to be innocent, unless proven guilty. The presumption of innocence is still available to the applicant, as the bail 8 2025:HHC:38506

application cannot be rejected merely as a matter of punishment, since, pre-trial punishment is prohibited under the law.

13. The applicant is permanent resident of District Shimla, as such, it cannot be apprehended that in case, he is ordered to be released on bail, he may not be available for the trial.

14. Similarly, for the apprehensions, which have been expressed by respondent No. 2-complainant in his objections, are concerned, for those apprehensions, reasonable conditions can be imposed.

15. The complainant, in his complaint, has specifically stated that the daughter of complainant was married to the applicant about six years ago, from the date, when the complaint was made, on 28.01.2025. Once, the factum of marriage, between the daughter of complainant and applicant, has been admitted, then, considering the stand of the police, as taken in the status report, in the light of provisions of Section 5 of Hindu Marriage Act, this Court is of the view that the marriage with minor is neither void 9 2025:HHC:38506 nor voidable. However, contravention of clause (iii) of Section 5 is punishable under Section 18 of Hindu Marriage Act and under Prohibition of Child Marriage Act.

16. Unfortunately, a young life has been lost, but the role, as alleged against the applicant, in the alleged abetment will be proved during the trial, and as such, the applicant cannot be kept in the judicial custody, that too, for the indefinite period.

17. Considering all these facts, this Court is of the view that the bail application is liable to be allowed and is accordingly allowed.

18. Consequently, the applicant is ordered to be released, on bail, during the pendency of trial, arising out of FIR No. 08/2025, dated 28.01.2025, under Sections 108, 85 of BNS, Section 9 of Prohibition of Child Marriage Act and Section 6 of POCSO Act, registered with Police Station Jhakri, District Shimla, H.P. on his furnishing personal bonds in the sum of Rs. 50,000/- with one surety of the like amount, to the satisfaction of the learned trial Court.

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19. This order, however, shall be subject to the following conditions:-

a) The applicant shall regularly attend the trial Court on each and every date of hearing and if prevented by any reason to do so, seek exemption from appearance by filing the appropriate application;

b) The applicant shall not tamper with the prosecution evidence nor hamper the investigation of the case in any manner whatsoever;

c) The applicant shall not make any inducement, threat or promises to any person acquainted with the facts of the case so as to dissuade them from disclosing such facts to the Court or the Police Officer; and

d) The applicant shall not leave the territory of India without the prior permission of the Court.

20. Any of the observations, made hereinabove, shall not be taken, as an expression of opinion, on the merits of the case, as these observations are confined, only to the disposal of the present bail application.

21. It is made clear that respondent State is at liberty to move an appropriate application, in case, any of the bail conditions is found violated by the applicant.

22. The Registry is directed to forward a soft copy of 11 2025:HHC:38506 the bail order to the Superintendent of Jail, District Jail, Kaithu, District Shimla, Himachal Pradesh, through email, with a direction to enter the date of grant of bail in the e-prison software.

23. In case, the applicant is not released within a period of seven days from the date of grant of bail, the Superintendent of Jail, District Jail, Kaithu, District Shimla, Himachal Pradesh, is directed to inform this fact to the Secretary, DLSA, Shimla. The Superintendent of Jail, District Jail, Kaithu, District Shimla Himachal Pradesh, is further directed that if the applicant fails to furnish the bail bonds, as per the order passed by this Court, within a period of one month from today, then, the said fact be submitted to this Court.

(Virender Singh)
Judge

17th November, 2025
(Pramod Kumar)

PRADEEP

Date: 2025.11.17